



File No.: EXP202307792 (AI/00194/2023)

RESOLUTION OF FILE OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 14, 2023, a complaint was filed with entry registration number REGAGE23e (...) before the Spanish Agency for Data Protection, by the RIOJAN POLICE AND OFFICIALS UNION against the SANTO DOMINGO DE LA CALZADA CITY COUNCIL with NIF P2613800H (hereinafter, SANTO DOMINGO CITY COUNCIL). The reasons for the complaint are as follows:

The existence of a possible breach of data protection regulations by ***POSITION.1 of the Local Police of the SANTO DOMINGO CITY COUNCIL, due to the leak of a video belonging to the summary of a police report, in which an assault by a person is visualized.

***POSITION.2 of the aforementioned union states that on 25/02/2023, ***POSITION.1 went to the supermarket where the incident occurred and copied the images captured by the surveillance cameras, subsequently downloading them onto the common computer in the "report room" of the local police station, a device that can be accessed by any police officer, official, and other workers, which has caused the aforementioned video to be recorded with a mobile phone by someone unidentified who has made it public via WhatsApp.

Along with the complaint, a copy of the video in question is provided, in which the participants can be identified, and links to three media outlets that have reported the news.

On June 8, 2023, by virtue of an Agreement from the Director of this Agency, as a consequence of the complaint filed by the RIOJAN POLICE AND OFFICIALS UNION, an ex officio investigation was opened, and the General Subdirectorate of Data Inspection was urged to initiate preliminary investigation actions aimed at verifying these facts and their authorship.

SECOND: On February 28, 2024, A.A.A. (hereinafter, the claimant) filed a complaint with entry registration number REGAGE24e (...) against the SANTO DOMINGO DE LA CALZADA CITY COUNCIL, with NIF P2613800H, for the same facts contained in the previously mentioned complaint. Along with the complaint, a video of an assault in a supermarket is provided, in which the victim of said assault is identified, being the same video submitted by the complainant according to Fact One, a printout of a webpage where the news of the video's dissemination is recorded, a medical report of the injury suffered from the assault, a response to a claim for damages to the company in whose supermarket the claimant suffered the assault recorded by the security cameras, and finally, a demand for patrimonial liability from the SANTO DOMINGO DE LA CALZADA City Council for the dissemination of the video.

THIRD: On March 27, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

Except for written statements from the complainant, no evidence of the publication of the indicated video in any media or its dissemination through any messaging application or social networks has been provided. Therefore, additional information is requested from the complainant regarding the facts indicated in the complaint filed with this Agency.

In this regard, on August 2, 2023, a document with the requested information was received in this Agency, with registration number REGAGE23e00052547373, stating among other matters:

1. "There is no IT responsible in the Local Police station of Santo Domingo de la Calzada, as there is no such department; however, the ultimate responsible for the service is ***POSITION.1 D. B.B.B., author of the facts."

[...]

1. The computer in question is located in the report room of the police station. This computer in the report room is the computer that all members of the staff use daily, and for this, they must enter a private password. However, the leak of the video did not occur by accessing and extracting the content from within the computer, but rather, as can be verified in the video provided, the recording was made directly from the screen of the computer, so it was not an encoded file but open to anyone passing by, police or not, who pressed the “play” button to play the video (such as cleaning staff, any citizen who was filing a complaint, any detainee...), as well as any personnel with keys to access the police premises (mayor, councilors, off-duty police officers, police officers on service commissions, police officers separated from service...).

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Attached to this document is the same video in which, at the end of it, it can be seen that it is being recorded directly from the screen of a computer.

However, despite being requested, the complaining party does not present any evidence of the publication of the indicated video in any media or of its dissemination through any messaging application or social networks, as stated in their complaint.

In a subsequent document, dated August 18, 2023, and registered under number REGAGE23e (...), the complainant expands on the information indicating regarding the private password for accessing the computer that, to access it, each of the agents has a personal key that must be entered to access the equipment. They also clarify that the leak of the video did not occur by accessing the internal file of the computer, but rather someone recorded with their mobile phone the images displayed on the computer screen, so no password is necessary, and any person passing by has access to those images.

After outlining various scenarios under which the recording with the mobile phone could have occurred, they conclude by summarizing, “[...] that once the video file was negligently downloaded by [...] on the computer in the incident room and not on their private one, as mandated by the duty of custody and confidentiality, it came to be on a computer whose access is solely in the hands of the agents of the police station, but to whose screen an indeterminate number of people have access, as has been demonstrated unequivocally.

At this point, and without the possibility of knowing the identity of the person who hits “play” and records with their mobile phone the images appearing on the computer screen, the highest responsible and only known culprit is [...], as it was he who illegally obtained the recording, he was the one who negligently downloaded it on the computer in the incident room and not on his private one, violating the data protection duty of every authority agent, and he was the one who caused the viralization of the video (either directly by carrying out the recording and forwarding it himself, or indirectly through his negligence in leaving the recording on that computer for someone else to do so).”

Clarifications regarding the facts were requested from the City Council of Santo Domingo de la Calzada, and on November 14, 2023, this Agency received, registered under number REGAGE23e(...), a document sent by the mayor of this City Council stating that as of today, this City Council does not have the position of Data Protection Delegate and attaching a report from ***POSITION.1 of the Local Police Headquarters of the City Council of Santo Domingo de La Calzada in which it is stated that (...) from the supermarket informed this official about the aggression that occurred in the establishment against (...) a customer and sent him the video recorded by the security cameras via WhatsApp. They also indicate that ***POSITION.1 downloaded the video onto the common computer of the agents used for incident reports. The agents opened the corresponding file incorporating a record reflecting the events that occurred and archiving the received video as evidence of the aggressive behavior in public of the aggressor for possible further information if required by the Judicial Authorities. In this regard, the assaulted party, as noted in the records, claims that he does not wish to file a complaint regarding the events that occurred in the supermarket.

This ***POSITION.1 confirms that, in order to use the computer, each agent must enter their personal password.

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During the present proceedings, on February 28, 2024, a complaint was received by this Agency, registered under number REGAGE24e (...), submitted by the victim stating that the video in question was disseminated a few days later via social media in the municipality through the WhatsApp application without their consent. It is confirmed that no report of the events was filed.

The following relevant documentation is provided:

- Video of the assault
- Written communication sent to the victim by the representatives of the supermarket indicating that the compensation requested by the victim for a possible violation in the processing of their personal data was not warranted, as this establishment merely informed the Police of the events that could constitute a criminal offense, and as a result, has delivered the obtained recording at the request of the police authority.
- Copy of the complaint filed with the Santo Domingo de la Calzada City Council requesting the initiation of a Liability Procedure in which the victim seeks compensation for the violation of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights. Finally, it should be mentioned that both the complainant and the claimant point out several digital newspaper addresses where news of the claimed events appears, but this inspection has verified that the news does not address the claimed events, that is, the recording and alleged dissemination, but rather the complaint that the complainant has submitted to the City Council.
- The aforementioned press articles are incorporated into these proceedings as Associated Objects in the SIGRID case management system.

CONCLUSION

The video mentioned in the complaint was sent (...) from the supermarket directly to ***POST.1 of the Local Police at their request, who downloaded it onto the computer used by the officers at the station for the preparation of reports.

Despite the statements made by the complainant regarding where the controversial video should have been stored, there is no reason for this video of the assault to have been downloaded onto the personal computer of ***POST.1, instead of on the computer located in the report room used exclusively by the officers for the performance of their duties.

In the very document submitted by the complainant with registration number REGAGE23e00055678559, it is stated that the controversial video was not extracted from the common-use computer of the officers at the station, but was recorded from the screen by an unknown individual while it was being played. This fact highlights that the possibility of recording this video could have been the result of negligence by an Officer who left the computer unlocked or playing the video in question during their absence.

Regarding the complaint filed by the victim with this Agency, one year after the events, the documentation does not contain the necessary indications to determine the origin or means of the alleged dissemination, but only the controversial video. There is also no other information leading to the conclusion.

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of an incorrect protocol of action in the treatment of the video of the aggression by the ***PUERTO.1, but as already mentioned, the recording may have been due to the negligence of an Agent.

Regarding the recording made directly from the computer screen of the police station, there are no

indications in the documentation related to the complaint or the claim that allow determining the authorship of this recording.

LEGAL GROUNDS

I

Competence

According to the provisions of Articles 49 and 50 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and the execution of criminal sanctions (hereinafter LO 7/2021) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, Article 52 "Applicable regime to the procedures processed before the data protection authorities" of LO 7/2021 establishes that:

"1. In the event that the interested parties appreciate that the processing of personal data has infringed the provisions of this Organic Law or that their request to exercise the rights recognized in Articles 21, 22, and 23 has not been attended to, they will have the right to file a complaint with the data protection authority.

2. Such complaints will be processed by the competent data protection authority in accordance with the procedure established in Title VIII of Organic Law 3/2018, of December 5, and, where applicable, by the legislation of the Autonomous Communities that is applicable. The general rules on administrative procedures and the legal regime of the public sector will have a subsidiary character."

II

Preliminary Issues

Article 5.a) of LO 7/2021 defines "personal data" as:

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"any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is considered to be any person whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that person;"

Article 5.b) of LO 7/2021 defines "processing" as:

"any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of enabling access, alignment, combination, restriction, erasure, or destruction."

For its part, Article 5.g) of LO 7/2021 defines the "data controller" or "controller" as:

"the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States."

In the present case, according to the provisions of Articles 5.a) and b) of LO 7/2021, there is evidence of the processing of personal data, since the CITY COUNCIL OF SANTO DOMINGO carries out, among other processing activities, the preservation and use of personal data of natural persons, such as the image contained in video recordings.

The CITY COUNCIL OF SANTO DOMINGO carries out this activity in its capacity as data controller, as it is the one that determines the purposes and means of such activity, by virtue of the aforementioned Article 5.g) of LO 7/2021.

Article 5.j) of LO 7/2021 broadly defines “personal data security breaches” (hereinafter security breach) as “any breach of security that leads to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed.”

III

Presumption of Innocence

In the present case, a complaint is made motivated by the existence of a possible breach of data protection regulations by the CITY COUNCIL OF SANTO DOMINGO, due to the leakage of a video belonging to the summary of a police report, in which an aggression by a person is visualized, with the claimant being the victim. However, the claimant does not present any evidence of the publication of the aforementioned video in any media or of

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the dissemination of this through any messaging application or social networks, as stated in your complaint, since only the news of the complaint filed by the RIOJAN POLICE AND OFFICIALS UNION, published in several digital newspapers, is provided.

As the complainant stated, and it seems to be inferred from the characteristics of the recording itself, the controversial video was not extracted from the computer in the evidence room, commonly used by the agents of the police station, but was recorded from the screen by an unidentified person while it was being played. Furthermore, there is no other information that leads to the conclusion of the existence of an incorrect action protocol or that it was violated in the handling of the video of the aggression by the ***POST.1.

Regarding the recording made directly from the computer screen of the police station, there are no indications in the documentation related to the complaint or in the subsequent claim that allow for the determination of the authorship of this recording. There is also no evidence that anyone authorized had access to the room.

On the other hand, both the complainant and the claiming party point out some addresses of digital newspapers where news of the claimed events appears, but this Agency has been able to verify that the news does not address the claimed events, that is, the recording and alleged dissemination, but rather the complaint that the complainant has filed with the City Council.

In short, in the case at hand, the examination of the documents provided both by the complaint filed by the RIOJAN POLICE AND OFFICIALS UNION and by the subsequent claim made by the claiming party highlights the absence of evidence capable of justifying the initiation of a sanctioning procedure, as it has not been proven that personal data of the claiming party were exposed to unauthorized third parties, since the dissemination of the video in question has not been proven in any way.

In this regard, it should be emphasized that in the administrative sanctioning field, the guiding principles of criminal law apply, with some nuances but without exceptions, having full effect the principle of presumption of innocence, which must govern without exceptions in the sanctioning system and must be respected in the imposition of any sanctions.

The Constitutional Court in Judgment 76/1990 (STC) considers that the right to the presumption of innocence entails “that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal ruling.”

In accordance with this approach, Article 53.2 of the LPACAP establishes that, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights:

“a) (...)

b) The presumption of non-existence of administrative liability until proven otherwise.

As the Supreme Court specified in its Judgment of October 26, 1998, the validity of the principle of the presumption of innocence "does not oppose the fact that judicial conviction in a process may be formed on the basis of circumstantial evidence, but for this evidence to undermine said presumption, it must satisfy the following constitutional requirements: the indications must be fully proven – they cannot be mere suspicions – and it must explicitly state the reasoning by which, based on the proven indications, it has reached the conclusion that the accused committed the infringing conduct, since otherwise, neither the subsumption would be founded in law nor would there be a way to determine if the deductive process is arbitrary, irrational, or absurd, that is, if the right to the presumption of innocence has been violated by considering that the evidentiary activity can be understood as incriminating."

In this regard, it is necessary to distinguish true circumstantial evidence from mere suspicions or conjectures. The Constitutional Court has stated in its Judgment 24/1997, that "the criteria for distinguishing between circumstantial evidence capable of undermining the presumption of innocence and mere suspicions are based on the following: a) The circumstantial evidence must stem from fully proven facts. b) The facts constituting the crime must be deduced from those indications (completely proven facts) through a reasoned mental process in accordance with the rules of human reasoning, as stated in the convicting judgment (SSTC 174/1985, 175/1985, 229/1988, 107/1989, 384/1993, and 206/1994, among others)."

In summary, the principle of the presumption of innocence prevents attributing an administrative infringement when no incriminating evidence has been obtained and verified that substantiates the facts that could motivate the accusation or the involvement of the alleged infringer in them.

In this case, as stated, there are no rational indications that allow attributing to the claimed party the commission of any infringement of the personal data protection regulations regarding the facts subject to the claim, therefore, it cannot be considered that the right to the presumption of innocence that protects them has been undermined.

IV

Conclusion

Therefore, based on what has been indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, since it has not been possible to attribute any responsibility for the exposure of the personal data of the claiming party, in accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the AYUNTAMIENTO DE SANTO DOMINGO DE LA CALZADA and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of

Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and subsection 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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